

Amendment No. 1 to HB2177

White
Signature of Sponsor

AMEND Senate Bill No. 2351

House Bill No. 2177*

by deleting Section 3 and substituting:

SECTION 3. Tennessee Code Annotated, Section 49-3-316(a), is amended by deleting subdivisions (2)-(6) and substituting:

(2) Each LEA shall, within thirty (30) days after the beginning of each fiscal year, submit to the commissioner a complete and certified copy of its entire school budget for the current school year that is signed by the director of schools and the local legislative body that serves as the funding body for the LEA.

(3) A local legislative body shall make records related to the local revenue collections used to fund public schools in the city or county available upon the request of the LEA or a public charter school operating in the county or city that is funded by the local legislative body.

(4) Each LEA shall, on or before October 1 of each year, submit to the commissioner a correct and accurate financial report of the receipts and expenditures for all public school purposes in the LEA during the school year ending on June 30 immediately preceding the October 1 report date set forth in this subdivision (a)(4) that is signed by the director of schools and the school district's local legislative body.

(5) Each LEA shall deliver to the commissioner, within ten (10) days of receiving the audit report, a copy of the audit report required by law to be made of the school funds of the LEA.

(6) Notwithstanding another law to the contrary, any submission of, or revision to, an LEA's financial report required under subdivision (a)(4) made after December 1

must not decrease the per-pupil funding allocated to public charter schools located in the geographic boundaries of the LEA pursuant to § 49-13-112.

(7) A distribution of state funds must not be made to any LEA that has not furnished the commissioner with all records and reports required by this part and by other laws for the current or the preceding school year.

(8) Any records or reports provided to the commissioner by any LEA shall be made available to the comptroller of the treasury upon request.

AND FURTHER AMEND by deleting Section 10 and substituting:

SECTION 10. Tennessee Code Annotated, Section 49-13-137, is amended by deleting the section and substituting:

(a) A governing body that has at least one (1) public charter school authorized by a local board of education or the commission that has been in operation for at least three (3) full school years may submit a replication application, developed by the state board of education, to a local board of education through the application process outlined in §§ 49-13-107 and 49-13-108.

(b)

(1) A governing body that has at least one (1) public charter school authorized by the commission that has been in operation for at least three (3) full school years may apply for replication in the LEA in which the governing body is currently operating as a commission-authorized public charter school directly to the commission.

(2) If a sponsor for replication chooses to apply directly to the commission, then the application process must be in accordance with §§ 49-13-107 and 49-13-108 and the following:

(A) The commission shall rule by resolution, at a regular or specially called meeting, to approve or deny a replication application no later than ninety (90) days after the commission's receipt of the completed

application. If the commission fails to approve or deny a replication application within the ninety-day time period prescribed in this subdivision (b)(2)(A), then the replication application is deemed approved;

(B) If the commission denies an application, then the commission's grounds for denial must be stated in writing and must specify objective reasons for the denial. The sponsor has thirty (30) days from the date of receipt of denial to submit an amended application to correct the deficiencies. The commission must approve or deny the amended application no later than sixty (60) days after the commission's receipt of the amended application. If the commission fails to approve or deny the amended application within sixty (60) days, then the amended application is deemed approved;

(C) The commission's decision is final and is not subject to appeal; and

(D) If the commission approves an application, then the commission is the authorizer and the LEA for that public charter school.

(c) Notwithstanding this chapter to the contrary, the commission may promulgate rules for the authorization of replication applications submitted to the commission pursuant to this section. The rules must be promulgated in accordance with the Uniform Administrative Procedures Act, compiled in title 4, chapter 5.

AND FURTHER AMEND by deleting Section 7 and substituting:

SECTION 7. Tennessee Code Annotated, Section 49-13-108(a), is amended by adding ", subject to § 49-13-121(e)," after "renewal".